

**SUBSTITUTE FOR
HOUSE BILL NO. 5651**

A bill to amend 1949 PA 300, entitled
"Michigan vehicle code,"
by amending section 627a (MCL 257.627a), as amended by 2016 PA 446.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 627a. (1) As used in this section:

2 (a) "Regularly scheduled school session" means that part of a
3 day scheduled for student instruction until final dismissal of the
4 student body for that day.

5 (b) "School" means an educational institution operated by a
6 local school district or by a private, denominational, or parochial
7 organization. School does not include either of the following:

8 (i) An educational institution that the department of education
9 determines has its entire student population in residence at the



1 institution.

2 (ii) An educational institution to which all students are
3 transported in motor vehicles.

4 (c) "School zone" means school property on which a school
5 building is located and the adjacent property. A school zone
6 extends not more than 1,000 feet from the school property line in
7 any direction. If 2 or more schools occupy the same property or
8 adjacent properties, 1 of the following applies, as applicable:

9 (i) If the hours of instruction at the schools are the same,
10 then a single combined school zone ~~shall~~**must** be established.

11 (ii) If the hours of instruction at the schools are different,
12 overlapping school zones ~~shall~~**must** be established.

13 (2) A school zone speed limit on a highway segment in a school
14 zone, which, except as otherwise provided in this subsection, ~~shall~~
15 **must** be in force not more than ~~30-60~~ minutes before the first
16 regularly scheduled school session, rounded to the nearest multiple
17 of 5 minutes, until school commences, and from dismissal until not
18 more than ~~30-60~~ minutes after the last regularly scheduled school
19 session, rounded to the nearest multiple of 5 minutes, may be
20 decreased by not more than 20 miles per hour less than the speed
21 limit normally posted but ~~shall~~**must** be not less than 25 miles per
22 hour. A school superintendent may ~~begin~~**do any of the following:**

23 (a) **Begin** the ~~30-minute-60-minute enforcement~~ period before
24 the first regularly scheduled school session described in this
25 subsection at a time that is less than ~~30-60~~ minutes before the
26 first regularly scheduled school session and that extends beyond
27 the time school commences. ~~, may begin~~

28 (b) **Begin** the ~~30-minute-60-minute enforcement~~ period after
29 dismissal at a time other than dismissal. ~~, and, if a school has an~~



1 ~~off-campus lunch period, may designate the period provided for off-~~
2 ~~campus lunch~~

3 **(c) Subject to subsection (7), designate any of the following**
4 **as a**~~an~~ **enforcement** period during which the school zone speed limit
5 described in this subsection applies, **but may not exceed 5 total**
6 **enforcement periods in 1 day:**

7 **(i) If a school has an off-campus lunch period, the off-campus**
8 **lunch period.**

9 **(ii) If a school has students go off-campus for a field trip or**
10 **for classes at another school, a career tech center, or a local**
11 **university, the period during which the students are leaving campus**
12 **or returning to campus.**

13 (3) School zone speed limits ~~shall-do~~ not apply to a limited
14 access highway or a highway segment over which a pedestrian
15 overhead walkway is erected, if the walkway is adjacent to school
16 property.

17 (4) Notwithstanding the requirements for a school zone as
18 defined in subsection (1)(c), if a school is located in an area
19 that requires school children to cross a state trunk line highway
20 or county highway that has a speed limit of 35 miles per hour or
21 more to attend that school, the school superintendent may submit a
22 request to the state transportation commission, county road
23 commission, or local authority having jurisdiction over the
24 roadway, as applicable, for a school crossing as permitted under
25 section 613a. If, based on the traffic engineering studies, the
26 road authority determines the need for a lower speed limit, the
27 road authority may designate the crossing as a school zone. Before
28 submitting a request, the school superintendent ~~shall-must~~ have
29 completed a school route plan as prescribed by section 7A-1 of the



1 Michigan manual of uniform traffic control devices.

2 (5) If a school is in session year-round, a sign reading "All
3 Year School" ~~shall~~**must** be posted on the same signpost as and
4 immediately below the school zone sign.

5 (6) Louvered signs, digital message signs, and flashing lights
6 may be installed to supplement or replace permanent signs required
7 under this section. Signs erected and maintained as required under
8 this section ~~shall~~**must** conform to the Michigan manual on uniform
9 traffic control devices.

10 (7) **If additional enforcement periods are designated under**
11 **subsection (2) (c), a school zone sign with flashing lights**
12 **indicating that the school zone speed limit is in effect must be**
13 **installed and be activated during that additional enforcement**
14 **period.**

15 (8) ~~(7) A person~~**An individual** who violates a speed limit
16 established under this section is responsible for a civil
17 infraction.